

**CHAPTER cxvii.**

An Act to confirm certain Provisional Orders of the Local Government Board relating to the County Palatine of Lancaster and the Counties of Rutland and Surrey. A.D. 1904.
[22nd July 1904.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Local Government Act 1888 :

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1904. Short title.

A.D. 1904.

S C H E D U L E.

COUNTY PALATINE OF LANCASTER.

*County of
Lancaster
Order.*

*Provisional Order to enable the County Council of the County
Palatine of Lancaster to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

To the County Council of the County Palatine of Lancaster;—

And to all others whom it may concern.

WHEREAS the County Council of the County Palatine of Lancaster (herein-
after referred to as "the Council") require to purchase and take the lands
described in the schedule hereto for the purpose of the extension of their
county buildings and their existing police station and other buildings and
premises for the accommodation of the county police at Preston:

38 & 39 Vict.
c. 55.
51 & 52 Vict.
c. 41.

Now therefore We the Local Government Board in pursuance of the
powers given to Us by Section 176 of the Public Health Act 1875 by
Section 65 of the Local Government Act 1888 and by any other Statutes
in that behalf do hereby order that from and after the date of the Act
of Parliament confirming this Order the following provisions shall have
effect viz,—

Art. I. The Council shall be empowered to put in force with reference
to the lands described in the schedule hereto subject to the continuance of
existing public rights of highway (if any) and for the purpose aforesaid the
powers of the Lands Clauses Acts with respect to the purchase and taking
of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the County of Lancaster Order 1904.

The SCHEDULE above referred to.

A.D. 1904.

*County of
Lancaster
Order.*

Township and County Borough of PRESTON.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
2	House and yard - - -	George Oakey - - -	George Oakey.
3	Ditto - - -	The Trustee of the Will of James Caunce deceased viz. Edmund Dickson.	William Howat.
4	Ditto - - -	Joseph Taylor - - -	Joseph Taylor.
5	Ditto - - -	Messieurs S. B. Wilding and Sons.	Henry Oakey junior.
6	Ditto - - -	Ditto - - -	Alfred Nicholson.
7	Ditto - - -	James Seed - - -	James Seed.
8	Ditto - - -	Thomas Heginbotham -	Mary Elizabeth Moorhouse.
9	Ditto - - -	Charles A. Greenwood -	Elizabeth Walton.
10	Ditto - - -	Ann Higginson - - -	Ann Higginson.
11	Ditto - - -	Thomas Heginbotham -	James Kelly.
12	Ditto - - -	Ditto - - -	James Preston.
13	Ditto - - -	Robert Saul - - -	William Kay.
14	Common passage - - -	Thomas Heginbotham Charles A. Greenwood.	Mary Elizabeth Moorhouse.
15	Part of a common passage -	Thomas Heginbotham Robert Saul.	James Kelly James Preston William Kay.
16	Ditto - - -	Joseph Taylor Messieurs S. B. Wilding and Sons.	Joseph Taylor Henry Oakey junior Alfred Nicholson.
17	Ditto - - -	The Trustee of the Will of James Caunce deceased (as before).	William Howat.

Given under the Seal of Office of the Local Government Board this
Twenty-ninth day of April One thousand nine hundred and
four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

A.D. 1904.

*County of
Rutland Order.*

COUNTY OF RUTLAND.

*Provisional Order made in pursuance of sub-section (2) of
Section 69 of the Local Government Act 1888.*

To the County Council of Rutland;—

And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by sub-section (1) of Section 69 of the Local Government Act 1888 (herein-after referred to as "the Act") the County Council of any Administrative County are empowered to borrow on the security and for the purposes in that sub-section mentioned and by sub-section (2) of that section it is provided that where the total debt of the County Council after deducting the amount of any sinking fund exceeds or if the proposed loan is borrowed will exceed the amount of one-tenth of the annual rateable value of the rateable property in the County ascertained according to the standard or basis for the county rate the amount shall not be borrowed except in pursuance of a Provisional Order made by the Local Government Board and confirmed by Parliament;

And whereas the County Council of Rutland (which Council and County are herein-after respectively referred to as "the County Council" and "the County") propose to borrow with the consent of the Local Government Board and subject to the provisions of the Act certain sums of money which if borrowed will together with the total debt of the County after deducting the amount of any sinking fund exceed the amount which the County Council are authorised to borrow under the Act without a Provisional Order made by the Local Government Board and confirmed by Parliament and it is expedient that a Provisional Order be made to extend the amount to be borrowed as herein-after mentioned :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 69 of the Act and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz. :—

Additional
borrowing
powers.

Art. I. Subject to and in accordance with the provisions of the Act the County Council may from time to time borrow such sums as will not together with the sums which they may be authorised to borrow under the Act without a Provisional Order and the outstanding balance of debt after deducting the amount of any sinking fund exceed the sum of thirty-five thousand pounds.

Short title.

Art. II. This Order may be cited as the County of Rutland Order 1904.

Given under the Seal of Office of the Local Government Board this
Twentieth day of April One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

COUNTY OF SURREY.

A.D. 1904.

*Provisional Order made in pursuance of sub-section (2) of
Section 69 of the Local Government Act 1888. ;*

*County of
Surrey Order.*

To the County Council of Surrey ; —

And to all others whom it may concern.

WHEREAS by sub-section (1) of Section 69 of the Local Government Act 1888 (herein-after referred to as "the Act") the County Council of any Administrative County are empowered to borrow on the security and for the purposes in that sub-section mentioned and by sub-section (2) of that section it is provided that where the total debt of the County Council after deducting the amount of any sinking fund exceeds or if the proposed loan is borrowed will exceed the amount of one-tenth of the annual rateable value of the rateable property in the County ascertained according to the standard or basis for the county rate the amount shall not be borrowed except in pursuance of a Provisional Order made by the Local Government Board and confirmed by Parliament ;

51 & 52 Vict.
c. 41.

And whereas the County Council of Surrey (which Council and County are herein-after respectively referred to as "the County Council" and "the County") propose to borrow with the consent of the Local Government Board and subject to the provisions of the Act certain sums of money which if borrowed will together with the total debt of the County after deducting the amount of any sinking fund exceed the amount which the County Council are authorised to borrow under the Act without a Provisional Order made by the Local Government Board and confirmed by Parliament and it is expedient that a Provisional Order be made to extend the amount to be borrowed as herein-after mentioned :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 69 of the Act and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Art. I. Subject to and in accordance with the provisions of the Act the County Council may from time to time borrow such sums as will not together with the sums which they may be authorised to borrow under the

Additional
borrowing
powers.

[Ch. cxvii.] *Local Government Board's* [4 EDW. 7.]
Provisional Orders Confirmation (No. 6) Act, 1904.

A.D. 1904. Act without a Provisional Order and the outstanding balance of debt after
County of deducting the amount of any sinking fund exceed the sum of eight hundred
Surrey Order. and twenty thousand pounds.

Short title. Art. II. This Order may be cited as the County of Surrey Order 1904.

Given under the Seal of Office of the Local Government Board this
Third day of February One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

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